

Reena Devi v. Chairman, U.P. Power Corp. Ltd.

Allahabad High Court · Division Bench · 4 August 2016 · WRIT - C No. 35883 of 2016 · **Writ disposed; petitioner directed to apply under clause 6.5 for bill correction; Executive Engineer to decide in one week and restore supply if no arrears.**

HEADNOTE

Where a consumer disputed a March 2016 bill showing arrears of Rs. 93,952 and subsequent pole disconnection, the High Court disposed of the writ by directing her to apply under clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005 for correction of the bill. The Executive Engineer was to hear and decide within one week; if no arrears were found, supply was to be restored forthwith.

FACTUAL SUMMARY

Reena Devi, a consumer of U.P. Power Corporation Ltd., received a bill in March 2016 showing arrears of Rs. 93,952. On the strength of that bill the licensee disconnected her electricity connection from the pole and sent her an intimation dated 15 June 2016. Contending that she owed no arrears, that the billed figure was patently erroneous, and that the disconnection was arbitrary, she filed a writ petition in the Allahabad High Court.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

bill-correction

HOLDING

A consumer disputing billed arrears and pole disconnection is to apply under clause 6.5 of the Uttar Pradesh Electricity Supply Code, 2005 for correction of the bill; the Executive Engineer must consider the application after hearing and pass an order within one week of production of a certified copy of the High Court's order, and if there are no electricity arrears, supply is to be restored forthwith. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE BILLED ARREARS OF RS. 93,952 WERE ACTUALLY DUE

Left to the Executive Engineer on a clause 6.5 application. ¶ 1

NOT DECIDED — WHETHER THE POLE DISCONNECTION WAS ARBITRARY

Not decided on merits; restoration directed only if no arrears are found. ¶ 1